

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DAVID ROBERTI,

Plaintiff

Index No.

Date Index # Purchased: 11/12/2018

--against--

SUMMONS

THE MADISON SQUARE GARDEN COMPANY, a Delaware business corporation, NAOMI STACKPOLE, in her official capacity as an employee of The Madison Square Garden Company, and individually, JOHN DOE 1-7*, in their official capacity as employees of The Madison Square Garden Company, and individually, CITY OF NEW YORK, a New York municipal corporation, JOEL MOTTOLA, in his official capacity as a Member of Service of the Police Department of the City of New York, and individually,

Defendants.

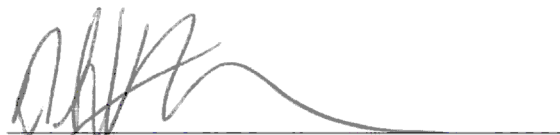
*The names of the defendants being fictitious and unknown to plaintiff, the persons intended being persons employed as ushers and/or security personnel by defendant The Madison Square Garden Company.

The basis for venue is the place where the cause of action arose.

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To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: November 12, 2018


THOMAS J. HILLGARDNER, ESQ.
Attorney for Plaintiff
82-63 170th Street
Jamaica, New York 11432
(718) 657-0606

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID ROBERTI,

Plaintiff

Index No.

--against--

VERIFIED COMPLAINT

THE MADISON SQUARE GARDEN COMPANY, a
Delaware business corporation, NAOMI STACKPOLE, in
her official capacity as an employee of The Madison
Square Garden Company, and individually, JOHN DOE
1-7*, in their official capacity as employees of The Madison
Square Garden Company, and individually, CITY OF NEW
YORK, a New York municipal corporation, JOEL
MOTTOLA, in his official capacity as a Member of
Service of the Police Department of the City of New York,
and individually,

Defendants.

*The names of the defendants being fictitious and
unknown to plaintiff, the persons intended being persons
employed as ushers and/or security personnel by defendant
The Madison Square Garden Company

-----X
As and for a complaint in this action, plaintiff David Roberti ("Plaintiff"), by his attorney
Thomas J. Hillgardner, Esq., alleges as follows, upon information and belief:

OVERVIEW

1. This is an action *inter alia* for false arrest, false imprisonment, and defamation
arising from the laying of false criminal charges against plaintiff on November 12, 2017 by an
employee of The Madison Square Garden Company, Naomi Stackpole, pursuant to an unlawful
policy of The Madison Square Garden Company, and to which the City of New York and its
employees working for the Police Department of the City of New York acquiesce or cooperate
with and that serve no legitimate public or law enforcement purpose.

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THE PARTIES

2. Defendant THE MADISON SQUARE GARDEN COMPANY ("MSG") is a Delaware business corporation authorized to do business in the State of New York with a principal place of business located at 2 Pennsylvania Plaza, New York, New York 10121, within the County, City, and State of New York.

3. Defendant NAOMI STACKPOLE is an employee of defendant MSG and she is sued herein in both her official capacity and her individual capacity.

4. Defendants JOHN DOE 1, JOHN DOE 2, JOHN DOE 3, JOHN DOE 4, JOHN DOE 5, JOHN DOE 6, and JOHN DOE 7 are employees of defendant MSG, the aforesaid names being fictitious and the true names of such persons being unknown to Plaintiff, the persons intended being persons employed as ushers and/or security personnel by MSG, and such persons are sued herein both in their official capacities and individual capacities.

5. Defendant CITY OF NEW YORK is a municipal corporation.

6. Defendant JOEL MOTTOLA is a police officer ("PO MOTTOLA") employed by the Police Department of the City of New York ("NYPD"), a charter agency of the defendant CITY OF NEW YORK, and he is sued herein in both his official capacity and his individual capacity.

7. Plaintiff is a natural person who was placed under arrest on November 12, 2017 by PO MOTTOLA upon the complaint of NAOMI STACKPOLE in her capacity as an employee of defendant MSG and Plaintiff subsequently was charged in an accusatory instrument filed in the Criminal Court of the City of New York with the crime of Criminal Trespass in the Third Degree (PL § 140.10..

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BACKGROUND INFORMATION

8. Defendant MSG, a sports and entertainment company, is a purveyor of arena services and is the operator of Madison Square Garden (hereinafter "The Garden"), one of the largest sports and entertainment complexes in the world and The World's Most Famous ArenaTM.

9. In its capacity as the operator of The Garden, defendant MSG hires employees in the nature of ticket takers, ushers, and security guards who provide building security in an effort to ensure that only properly authorized and/or licensed individuals enter the arena for ticketed events, and to attempt to guide and assist patrons while also enforcing the seat assignments of patrons in attendance at all ticketed events that provide for assigned seating.

10. On November 12, 2017, in the evening of that day, defendant PO MOTTOLA was assigned to the Midtown South precinct and was on duty.

11. On November 12, 2017, in the evening of that day, NAOMI STACKPOLE was working her job at The Garden where she is employed by defendant MSG in the security department.

12. On November 12, 2017, in the evening of that day, JOHN DOE 1, JOHN DOE 2, JOHN DOE 3, JOHN DOE 4, JOHN DOE 5, JOHN DOE 6 and JOHN DOE 7 were working at The Garden where they are employed by defendant MSG in the security department.

THE BUILDING

13. Situated atop Penn Station in New York City, The Garden is located between West 31st Street and West 33rd Street on Eighth Avenue, in the City, County, and State of New York and also is identified with reference to its physical and post office address as 4 Pennsylvania Plaza, New York, New York 10121.

14. The building is a facility designed to provide arena services for sporting events, concerts, performances, conventions, exhibitions, meetings, parties, receptions, and stage and special events.

15. The, home of the National Basketball Association franchise known as the New York Knickerbockers, the Women's National Basketball Association franchise known as the New York Liberty, the National Hockey League franchise known as the New York Rangers, and the venue of many musical events, shows, and until recently the Ringling Brothers, Barnum & Bailey Circus, the physical plant of The Garden itself necessarily is designed to allow for the safe and prompt admittance and departure of large numbers of ticketholders most typically immediately prior to the beginning and immediately after the end of large sporting and entertainment events.

16. When the arena is set up for a music concert, there may be seating for more than 20,000 at such an event.

17. In order to facilitate the safe and orderly flow of more than 20,000 patrons into and out of the building when the vast majority of those patrons like to arrive immediately before and are required by MSG to depart immediately after the event for which they came, the arena is designed with many entrances and dozens of doors on the exterior of the building at street level and in the interior of the building near street level.

THE EVENT

18. On November 12, 2017, Live Nation Entertainment, Inc., by and through its Live Nation division, produced a performance by the rock band known as "Dead & Company" at The Garden ("the Show") with the show time scheduled for 7:00 pm.

19. Upon information and belief, the Show previously was sold out and there were no tickets for the Show available for sale at The Garden box office on that night.

TICKETS

20. Tickets to the Show were sold to the general public by Ticketmaster, a division of Live Nation Entertainment, Inc., via their web site (www.ticketmaster.com) and telephone number, and in the secondary market by other unauthorized entities such as the web site Stub Hub (www.StubHub.com), and any person who may have purchased or been given, or otherwise obtained a ticket from any source whatsoever.

21. When tickets for events held at The Garden are purchased online from Ticketmaster, the purchaser agrees to be bound by the terms and conditions set forth on that web site, said terms and conditions which control both the terms of use of the Ticketmaster web site as well as the terms and conditions of the license granted by purchase of the tickets.

22. Using the Ticket FastTM option on Ticketmaster's web site, purchasers of tickets to the Show that were sold by Ticketmaster to the general public were amenable to being printed out by any purchaser with a home computer with a printer by selecting the Ticket FastTM option on the Ticketmaster website.

23. In the State of New York, it is unlawful for any person selling tickets to an artistic performance, such as the Show, to restrict the transferability of any ticket.

24. All tickets for the Show that were printed out by users of the Ticket FastTM option on the Ticketmaster website contained numerous legal warnings, notices, terms, and conditions some of which inform the holder of the ticket concerning the revocation of the license ostensibly provided to the holder by the ticket.

25. One such warning and notice expressly warns that "The barcode only allows one entry per scan" and that "[u]nauthorized duplication or sale of this ticket may prevent your admittance to the event."

26. Prior to the Show, on the day of the Show, Plaintiff obtained a ticket to the Show for free from a friend who informed Plaintiff that it was possible if not likely that he would not be able to attend the Show.

THE OCCURRENCE

27. Arriving late to the Show, Plaintiff entered The Garden at approximately 8:00 pm through one of the many nondescript and camouflaged side doors to The Garden that on the exterior of building are located just to the east of the entrance to Penn Station on the northeast corner of the intersection of Eighth Avenue and West 31st Street.

28. Plaintiff was able to enter The Garden through one of the aforesaid side doors ("the Side Door") because it was wide open and because there was no security personnel assigned to be present at the Side Door to secure The Garden from entry via the Side Door.

29. When Plaintiff entered The Garden through the Side Door he had in his possession indicia of license to be admitted to the Show ("the Ticket") and to sit in the seat designated as Section 104, Row 7, Seat 15 ("the Seat").

30. When Plaintiff entered the interior of the arena within the sightline of the stage, the Show already had started, the general overhead lighting had been shut off, the band was on the stage, and the stage was bathed in theatrical lighting.

31. Plaintiff proceeded to the Seat where he sat down and watched the remainder of the first of two sets of music to be played at the Show that night by Dead & Co., with an intermission scheduled between the two sets.

32. At the end of the first set, when the intermission came, the overhead lights came up clearly illuminating the interior of the arena and all of the people in the interior of the arena.

33. Very shortly thereafter, defendants JOHN DOE 1-7, who upon information and belief are employed by defendant MSG, and ostensibly working as ushers and/or security personnel, appeared in the aisle most adjacent to the Seat and demanded that Plaintiff step out into the aisle and produce a ticket for the Seat.

34. Plaintiff complied with this request and after Plaintiff stepped into the aisle, defendants JOHN DOE 1--7 did seize Plaintiff.

35. After Plaintiff stepped into the aisle, JOHN DOE 1 demanded that Plaintiff produce his ticket to the Show, whereupon Plaintiff produced the Ticket and defendant JOHN DOE 1 took possession of the Ticket.

36. After taking possession of the Ticket, JOHN DOE 1 informed Plaintiff that they would be taking him to the office of the security department at The Garden.

37. While defendants JOHN DOE 1-7 were seizing Plaintiff and taking him to the office of the security department, on more than one occasion Plaintiff offered to depart from the Show and leave The Garden, however, defendants JOHN DOE 1-7 rejected this offer and continued taking Plaintiff to the office of the security department.

38. While Plaintiff was being detained against his wishes in the office of the security department at The Garden, defendant PO MOTTOLA, who apparently had been dispatched there, entered the office of the security department whereupon he had a conversation with defendant NAOMI STACKPOLE.

39. While Plaintiff was being detained in the office of the security department, defendant NAOMI STACKPOLE informed defendant PO MOTTOLA that Plaintiff had entered

The Garden through the Side Door, that the Side Door was an emergency exit door, that at the time he entered through the Side Door he did not possess a ticket to the Show, and that MSG desired to press criminal trespass charges against Plaintiff for the aforesaid conduct.

40. At the time that defendant NAOMI STACKPOLE informed defendant PO MOTTOLA that Plaintiff had entered The Garden through an emergency exit door and that at the time Plaintiff entered The Garden through an emergency exit door he did not possess a ticket to the Show, defendant NAOMI STACKPOLE knew that to be false in that no one was present at the Side Door at the time Plaintiff entered The Garden through the Side Door to ascertain whether Plaintiff possessed a ticket to the Show at that time.

41. Notwithstanding that The Garden is designed to admit and discharge large numbers of ticket holders in a very short period of time and has dozens of doors at or near street level for the purpose of facilitating same, it is the custom and policy of the defendant CITY OF NEW YORK, by and through the NYPD, to oblige persons employed in the security department at The Garden to lay criminal trespass charges against any person employees of The Garden security department deem to have entered and remained in The Garden without license or permission, and to allege in any criminal complaint that The Garden is a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders.

42. However, there is no fence around The Garden and because the Garden is designed to admit and discharge large numbers of ticket holders in a very short period of time and has dozens of doors at or near street level to permit it to do so, The Garden is not enclosed in a manner designed to exclude intruders, and MSG cannot effectively exclude intruders from The Garden absent a large contingent of manpower to screen all persons seeking admittance to The Garden so as to allow admission to The Garden only to properly licensed and authorized

individuals while simultaneously working to actively prevent the admission into The Garden of unauthorized and unlicensed individuals.

43. Responding to the information provided to him by defendant NAOMI STACKPOLE that MSG desired to press criminal charges against Plaintiff and responding to the request of defendant NAOMI STACKPOLE that he arrest Plaintiff, in the office of the security department of The Garden at approximately 9:30 pm on November 12, 2017, defendant PO MOTTOLA placed Plaintiff under arrest and placed handcuffs on Plaintiff.

44. Upon information and belief, while Plaintiff was still being held in the office of the security department of The Garden after defendant PO MOTTOLA placed Plaintiff under arrest, defendant NAOMI STACKPOLE handed the Ticket to defendant PO MOTTOLA who, in turn, returned it to Plaintiff.

45. Defendant PO MOTTOLA escorted Plaintiff from the office of the security department in The Garden to a motor vehicle whereupon Plaintiff was transported to the Midtown South precinct on West 36th Street.

46. Once at the Midtown South precinct, defendant PO MOTTOLA detained Plaintiff for several hours while he processed Plaintiff's arrest, a process which included photographing and fingerprinting Plaintiff and ultimately issuing Plaintiff a desk appearance ticket requiring him to appear at the Midtown Community Court on January 16, 2018 at 9:00 am.

47. The November 12, 2017 arrest of Plaintiff by PO MOTTOLA was made without a warrant.

48. On December 27, 2017, defendant PO MOTTOLA signed a misdemeanor complaint wherein he alleged as follows:

Police Officer Joel Mottola, Shield 4213 of the Midtown South Precinct, states as follows:

That defendant is charged with:

PL 140.10(a)

Criminal Trespass in the Third Degree
(defendant #1: 1 count)

On or about November 12, 2017 at about 8:06 P.M., inside Madison Square Garden located at 4 Pennsylvania Plaza in the County and State of New York, the defendant knowingly entered and remained unlawfully in a building and upon real property which was fenced and otherwise enclosed in a manner designed to exclude intruders.

The factual basis for this charge is as follows:

I am informed by Naomi Stackpole, of an address known to the District Attorney's Office, that she observed the defendant, via electronic surveillance, enter a side emergency exit door at the above location which is Madison Square Garden. I am further informed by Naomi Stackpole that the defendant entered through the side emergency exit door while a concert was taking place. I am further informed by Naomi Stackpole that the defendant could not produce a ticket for the concert that was taking place at the time of the occurrence. I am further informed by Naomi Stackpole that the defendant was not allowed to enter through the side emergency exit door without having a ticket.

I am further informed by Naomi Stackpole, that she works security at the Madison Square Garden, and that the defendant did not have permission or authority to enter or remain in the above mentioned area.

49. The misdemeanor complaint contained a notice that false statements made therein are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law and as other crimes.

50. Because defendant NAOMI STACKPOLE alleged that she observed Plaintiff enter The Garden via electronic surveillance, and because Plaintiff was in possession of the Ticket when he was seized by JOHN DOE 1-7, and because defendant PO MOTTOLA

personally observed the Ticket, when defendant PO MOTTOLA signed the misdemeanor complaint on December 26, 2017 he knew or should have known that the allegation that Plaintiff could not produce a ticket to the Show when he entered The Garden was most likely a false statement.

51. On January 16, 2018, at the Midtown Community Court, Plaintiff was arraigned by a Judge of the Criminal Court of the City of New York and the matter was adjourned to February 26, 2018 for conversion of the misdemeanor complaint.

52. On February 1, 2018, defendant NAOMI STACKPOLE signed a supporting deposition wherein she stated "that I have read the Accusatory Instrument filed in the above entitled action and attached hereto, and that the facts therein stated to be on information furnished by me are true upon my personal knowledge."

53. The supporting deposition of defendant NAOMI STACKPOLE contained a notice that false statements made therein are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law and as other crimes.

54. Because defendant NAOMI STACKPOLE furnished the information contained in the misdemeanor complaint that at 8:06 pm on November 12, 2017 she observed Plaintiff enter The Garden via electronic surveillance, and that at the time he entered The Garden he could not produce a ticket for the Show, and because Plaintiff produced the Ticket upon the request of defendant JOHN DOE 1 in the aisle adjacent to the Seat, who upon information and belief gave the Ticket to defendant NAOMI STACKPOLE, when defendant NAOMI STACKPOLE signed the supporting deposition on February 1, 2018 she knew that the information furnished by her that was contained in the misdemeanor complaint stating that at the time Plaintiff entered The Garden he could not produce a ticket to the Show was most likely a false statement.

55. On February 8, 2018, off calendar the People served on Plaintiff's attorney the supporting deposition of defendant NAOMI STACKPOLE and a certificate of readiness for trial.

56. On February 26, 2018, at the Midtown Community Court, Plaintiff, by his attorney, served and filed a motion *inter alia* to dismiss the accusatory instrument as facially insufficient, and thereafter the matter was transferred to Part C at 100 Centre Street and adjourned to April 3, 2018 for the People to serve and file opposition to that motion.

57. . On April 3, 2018, at Part C of the New York City Criminal Court located at 100 Centre Street, New York, New York, the People served their opposition to Plaintiff's motion to dismiss and the matter was adjourned to May 3, 2017 for decision.

58. On May 3, 2018, a Judge of the Criminal Court of the City of New York issued a decision and order dismissing the accusatory instrument as facially insufficient.

NOTICE OF CLAIM ALLEGATIONS

59.. On February 10, 2018, Plaintiff, by his attorney, filed a notice of claim against the defendant CITY OF NEW YORK for false arrest/false imprisonment arising from the November 12, 2017 actions of defendant PO MOTTOLA in arresting Plaintiff.

60. More than ninety days have elapsed since the filing of the notice of claim and the defendant CITY OF NEW YORK failed to timely serve Plaintiff with reasonable notice of any request by it for a 50-h hearing.

61. More than thirty days have elapsed since the filing of the notice of claim and the defendant CITY OF NEW YORK has failed to settle or otherwise compromise said claim.

62. This action is commenced within one year and ninety days of the date when Plaintiff's cause of action for false arrest/false imprisonment arose.

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**AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/False Imprisonment - Naomi Stackpole)**

63. Plaintiff repeats and realleges all matter contained in paragraphs 1-62 of this complaint as if same were more fully set forth below.

64. By falsely informing the NYPD that Plaintiff did not possess a ticket to the Show on November 12, 2017 at 8:06 pm when Plaintiff entered and remained in The Garden, defendant NAOMI STACKPOLE caused Plaintiff to be confined by the NYPD.

65. When defendant NAOMI STACKPOLE informed the NYPD that Plaintiff did not possess a ticket to the Show on November 12, 2017 at 8:06 pm when Plaintiff entered and remained in The Garden, defendant NAOMI STACKPOLE intended to cause the confinement of Plaintiff.

66. Plaintiff was conscious of his confinement by the NYPD.

67. Plaintiff did not consent to his confinement by the NYPD.

68. The confinement of Plaintiff caused by defendant NAOMI STACKPOLE was not otherwise privileged.

**AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/False Imprisonment - Naomi Stackpole)**

69. Plaintiff repeats and realleges all matter contained in paragraphs 1-68 of this complaint as if same were more fully set forth below.

70. By asking defendant PO MOTTOLA to arrest Plaintiff for criminal trespass in the third degree, when she knew that The Garden was not fenced or otherwise enclosed in a manner designed to exclude intruders, defendant NAOMI STACKPOLE caused Plaintiff to be confined by the NYPD.

71. When defendant NAOMI STACKPOLE asked PO MOTTOLA to arrest Plaintiff while knowing that The Garden was not fenced or otherwise enclosed in a manner designed to exclude intruders, defendant NAOMI STACKPOLE intended to cause the confinement of Plaintiff by the NYPD.

**AS AND FOR A THIRD CAUSE OF ACTION
(False Arrest/False Imprisonment - John Doe 1-7)**

72. Plaintiff repeats and realleges all matter contained in paragraphs 1-71 of this complaint as if same were more fully set forth below.

73. When by dint of their number and show of force and authority defendants JOHN DOE 1-7 did compel Plaintiff against his will to leave the aisle adjacent to the Seat and accompany them to the office of the security department at The Garden, defendants JOHN DOE 1-7 caused Plaintiff to be confined.

74. When defendants JOHN DOE 1-7 compelled Plaintiff against his will to leave the aisle adjacent to the Seat and accompany them to the office of the security department at The Garden, defendants JOHN DOE 1-7 intended to cause the confinement of Plaintiff.

75. Plaintiff was conscious of his confinement by JOHN DOE 1-7.

76. Plaintiff did not consent to his confinement by JOHN DOE 1-7.

77. The confinement of Plaintiff caused by JOHN DOE 1-7 was not otherwise privileged.

**AS AND FOR A FOURTH CAUSE OF ACTION
(False Arrest/False Imprisonment - PO Mottola)**

78. Plaintiff repeats and realleges all matter contained in paragraphs 1-77 of this complaint as if same were more fully set forth below.

79. At all times relevant hereto, defendant PO MOTTOLA knew that at the time he arrested Plaintiff, that the information provided to him by defendant NAOMI STACKPOLE to the effect that on November 12, 2017, at 8:06 pm when Plaintiff entered The Garden he did not possess a ticket to the Show was most likely false.

80. When defendant PO MOTTOLA arrested Plaintiff he had neither a warrant for Plaintiff's arrest nor probable cause to believe that Plaintiff had committed any offense under the Penal Law.

81. By arresting Plaintiff, defendant PO MOTTOLA caused Plaintiff's confinement.

82. In arresting Plaintiff, it was defendant PO MOTTOLA's intent to confine him.

83. Plaintiff did not consent to confinement by defendant PO MOTTOLA.

84. The confinement of Plaintiff caused by PO MOTTOLA's arrest of Plaintiff was not otherwise privileged.

**AS AND FOR A FIFTH CAUSE OF ACTION
(False Arrest/False Imprisonment - MSG)**

85. Plaintiff repeats and realleges all matter contained in paragraphs 1-84 of this complaint as if same were more fully set forth below.

86. At all times relevant hereto, MSG knew or should have known that The Garden is not a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders.

87. At all times relevant hereto, MSG instructs its security personnel to call the police and request that charges be filed for criminal trespass in the third degree whenever any person is found inside The Garden who security personnel deem to have entered or remained in The Garden without license or privilege to do so.

88. When defendant MSG instructed its security personnel to call the police and request that charges be filed for criminal trespass in the third degree whenever a person is found inside The Garden and is deemed by security personnel to have entered or remained in the Garden without license or privilege to do so, it knew that persons, such as Plaintiff, who did not knowingly enter or remain in The Garden without license or privilege to do so, might be arrested and charged with criminal trespass in the third degree.

89. When defendant MSG so instructed its security personnel, it caused Plaintiff to be confined.

90. When defendant MSG so instructed its security personnel, it intended to cause Plaintiff and persons similarly situated to Plaintiff, including but not limited to legendary New York Knickerbocker player Charles Oakley, to be confined whenever it deemed them to be without license or privilege to enter or remain in The Garden.

91. Plaintiff was conscious of his confinement caused by MSG.

92. Plaintiff did not consent to any confinement caused by MSG.

93. The confinement of Plaintiff caused by defendant MSG was not otherwise privileged.

**AS AND FOR A SIXTH CAUSE OF ACTION
(Defamation Per Se - Naomi Stackpole)**

94. Plaintiff repeats and realleges all matter contained in paragraphs 1-93 of this complaint as if same were more fully set forth below.

95. The statement of defendant NAOMI STACKPOLE made to defendant PO MOTTOLA - that on November 12, 2017 at 8:06 pm Plaintiff knowingly entered and remained in The Garden without a license or permission to do so - is false.

96. When defendant NAOMI STACKPOLE communicated the aforesaid statement to defendant PO MOTTOLA, she knew that defendant PO MOTTOLA, in understanding her statement, would deem The Garden to be "a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders" notwithstanding that she knows or should know that The Garden is not "a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders," and while also knowing that defendant PO MOTTOLA, upon hearing the aforesaid statement, would charge Plaintiff with criminal trespass in the third degree while alleging that The Garden is "fenced or otherwise enclosed in a manner designed to exclude intruders."

97. When defendant NAOMI STACKPOLE made the aforesaid statement to defendant PO MOTTOLA, she knew that the statement - that on November 12, 2018 at 8:06 pm Plaintiff knowingly entered and remained in The Garden without license or privilege to do so - would cause defendant PO MOTTOLA to arrest Plaintiff and charge him with criminal trespass in the third degree.

98. When defendant NAOMI STACKPOLE made the aforesaid statement to defendant PO MOTTOLA, she knew that she was not privileged or authorized to make that statement to defendant PO MOTTOLA.

99. When defendant NAOMI STACKPOLE made the aforesaid statement to defendant PO MOTTOLA, she knew that the aforesaid statement was most likely false.

100. Defendant NAOMI STACKPOLE made the aforesaid communication to defendant PO MOTTOLA out of ill-will toward Plaintiff because she took Plaintiff's entry to The Garden via the Side Door to be a personal affront to herself and she desired to retaliate

against Plaintiff for entering The Garden using the Side Door regardless of whether he had a license or privilege to do so.

101. Criminal trespass in the third degree is a "serious crime."

**AS AND FOR A SEVENTH CAUSE OF ACTION
(Defamation Per Quod - Naomi Stackpole)**

102. Plaintiff repeats and realleges all matter contained in paragraphs 1-101 of this complaint as if same were more fully set forth below.

103. Plaintiff suffered injury to his reputation from the aforesaid statement that defendant NAOMI STACKPOLE communicated to defendant PO MOTTOLA and that caused defendant PO MOTTOLA to arrest Plaintiff as doing so was the proximate cause of PO MOTTOLA generating a NYSID number for Plaintiff which thereby will follow Plaintiff around for the rest of his life, and wherein any police officer running a criminal background check or a check for wants and warrants on Plaintiff will know that Plaintiff previously has been arrested and where Plaintiff never before in his life had been arrested for any crime or offense and never had a NYSID number.

104. Plaintiff also suffered economic damage as a result of his arrest where he was compelled to retain the services of an attorney to represent him in the criminal action and to make the motion that resulted in the dismissal of that criminal action.

105. Plaintiff also suffered economic damage as a result of his arrest where he was caused to incur expenses in connection with travelling to court for the court proceedings mandated by his arrest and the filing of criminal charges against him.

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**AS AND FOR AN EIGHTH CAUSE OF ACTION
(Malicious Prosecution - Naomi Stackpole)**

106. Plaintiff repeats and realleges all matter contained in paragraphs 1-105 of this complaint as if same were more fully set forth below.

107. By falsely informing defendant PO MOTTOLA that on November 12, 2017 at 8:06 pm Plaintiff entered and remained in the Garden knowing that he was without license or privilege to do so, defendant NAOMI STACKPOLE caused a criminal proceeding to be initiated against Plaintiff.

108. The criminal proceeding that was initiated against Plaintiff based upon his alleged trespass upon the property of defendant MSG on November 12, 2017 was terminated in Plaintiff's favor.

109. When on November 12, 2017 defendant NAOMI STACKPOLE informed defendant PO MOTTOLA that Plaintiff had knowingly entered and remained in The Garden on November 12, 2018 at 8:06 pm without a ticket for the Show and knowing that he was without license or privilege to do so, Defendant Naomi Stackpole lacked reasonable cause to believe that when Plaintiff entered and/or remained in The Garden at November 12, 2017 at 8:06 pm he did not have a ticket for the Show and knew that he did not otherwise have a license or privilege to enter or remain therein.

110. Defendant NAOMI STACKPOLE harbored ill-will towards Plaintiff because Plaintiff entered The Garden using the Side Door, defendant NAOMI STCKPOLE took it as a personal affront that Plaintiff used the Side Door to gain entry to The Garden, and defendant NAOMI STACKPOLE maliciously caused Plaintiff to be arrested in retaliation for Plaintiff's use of the Side Door to gain entry to The Garden.

**AS AND FOR A NINTH CAUSE OF ACTION
(Malicious Prosecution - MSG)**

111. Plaintiff repeats and realleges all matter contained in paragraphs 1-110 of this complaint as if same were more fully set forth below.

112. At some time unknown to Plaintiff, but prior to November 12, 2017, defendant MSG informed the NYPD that The Garden was a building or upon real property fenced or otherwise enclosed in a manner designed to exclude intruders.

113. When defendant MSG informed the NYPD that The Garden was a building or upon real property fenced or otherwise enclosed in a manner designed to exclude intruders, defendant MSG knew or should have known that The Garden was not a building or located upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders.

114. Defendant MSG knows or should know that many of its employees smoke cigarettes, that it is common for its employees who smoke cigarettes to open the Side Door, and/or other doors in close proximity to the Side Door that open out on to West 31st Street, prop such door open, and step outside The Garden and onto West 31st Street so that they may smoke a cigarette, and that such employees frequently do this without securing the Side Door.

115. Notwithstanding the foregoing, defendant MSG trains its security personnel to capture any person entering The Garden through the Side Door, to hold them for the police, and to request that the police charge all such persons with criminal trespass in the third degree whenever such person is deemed by security personnel to lack a license or privilege to enter or remain in the Garden, and regardless of whether such person possesses any indicia of a license.

116. This policy is enforced by defendant MSG with reckless disregard to the facts of any particular situation, and so that the public gets the message that persons found inside The

Garden who are deemed by security personnel to be without license or privilege to be there, will be charged with a criminal offense whether or not they committed one.

117. The aforesaid policy and MSG's false claim made to NYPD that The Garden is a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders, is the cause of the initiation of criminal proceedings against Plaintiff in connection with his presence in The Garden on November 12, 2017.

118. Because MSG knows or should know that The Garden is not a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders, defendant MSG lacks reasonable cause to believe that any person found inside The Garden without license or privilege to enter or remain is guilty of criminal trespass in the third degree.

119. The enforcement of a policy that knowingly sweeps up persons who are not guilty of criminal conduct and causes them, at the very least, to be overcharged with a crime and not a violation, and perhaps when they are not committing any offense whatsoever, is malicious conduct committed by defendant MSG and directed at persons who attend events at The Garden and is motivated by economic gain, which it prioritizes over the faithful execution of the law and fair treatment of individuals who attend events at The Garden in accordance with licenses granted or apparently granted to them and purporting to grant such persons a license.

**AS AND FOR A TENTH CAUSE OF ACTION
(Vicarious Liability - City of New York)**

120. Plaintiff repeats and realleges all matter contained in paragraphs 1-119 of this complaint as if same were more fully set forth below.

121. At all times relevant hereto, defendant PO MOTTOLA was an employee of defendant CITY OF NEW YORK.

122. At all times relevant hereto and with regard to all of the acts and/or omissions of defendant PO MOTTOLA alleged herein, defendant PO MOTTOLA was acting within the scope of his employment as an NYPD police officer by defendant CITY OF NEW YORK.

123. Defendant CITY OF NEW YORK is liable to Plaintiff for all of Plaintiff's damages and injuries caused by the acts and/or omissions of its aforesaid employee acting within the scope of his employment based upon the doctrine of *respondeat superior*.

**AS AND FOR A ELEVENTH CAUSE OF ACTION
(Vicarious Liability - MSG)**

124. Plaintiff repeats and realleges all matter contained in paragraphs 1-123 of this complaint as if same were more fully set forth below.

125. At all times relevant hereto, defendants NAOMI STACKPOLE and JOHN DOE 1-7 were employees of defendant MSG.

126. At all times relevant hereto and with regard to all of the acts and/or omissions of defendants NAOMI STACKPOLE and JOHN DOE 1-7 alleged herein, defendants NAOMI STACKPOLE and JOHN DOE 1-7 were acting within the scope of their employment by MSG.

127. Defendant MSG is liable to Plaintiff for all of Plaintiff's damages and injuries caused by the acts and/or omissions of its aforesaid employees acting within the scope of their employment based upon the doctrine of *respondeat superior*.

**AS AND FOR AN TWELFTH CAUSE OF ACTION
(42 USC § 1983 - City of New York)**

128. Plaintiff repeats and realleges all matter contained in paragraphs 1-127 of this complaint as if same were more fully set forth below.

129. At all times alleged herein, defendant CITY OF NEW YORK, its charter agency the NYPD, all of its employees acting in its name and/or on its behalf as alleged herein, and defendant PO MOTTOLA were acting under color of law.

130. It is a custom and/or policy of defendant CITY OF NEW YORK, by and through its charter agency the NYPD, to deem The Garden "a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders."

131. It is a custom or policy of defendant CITY OF NEW YORK, by and through its charter agency the NYPD, to arrest and charge with criminal trespass in the third degree any person deemed by security personnel employed by defendant MSG at The Garden to have entered or remained in the Garden without license or privilege to do so.

132. As a direct result of all of the aforesaid acts of defendant PO MOTTOLA and the customs and policies of the defendant CITY OF NEW YORK, by and through its charter agency the NYPD, defendant CITY OF NEW YORK and defendant PO MOTTOLA caused Plaintiff to be deprived of rights and immunities secured to him pursuant to the United States Constitution, and more particularly the Fourth Amendment and the Due Process Clause of the Fourteenth Amendment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Declaratory Judgment - City of New York/MSG)**

133. Plaintiff repeats and realleges all matter contained in paragraphs 1-132 of this complaint with the same force and effect as if same were more fully set forth below.

134. Plaintiff frequently attends ticketed sporting events, exhibitions, and rock concerts at numerous venues and arenas including many operated by defendant MSG, and/or its

subsidiaries, including but not limited to The Garden, the Beacon Theater, The Paramount Theater, and others.

135. Over the course of his lifetime, defendant has attended over 100 events at The Garden and the Beacon Theater.

136. Defendant MSG continues to sponsor and/or host events at The Garden that Plaintiff finds of interest and that Plaintiff desires to attend at the present time, and he anticipates that defendant MSG will continue to sponsor or host events at The Garden that Plaintiff will desire to attend.

137. While Plaintiff likes to retain as a souvenir his ticket to any ticketed event he attends, doing so is not always easy given the chaos inherent in some of the events he attends, tickets sometimes get lost or misplaced, and Plaintiff is sometimes unable to keep his ticket as a souvenir, or to produce it on demand after it has been used to secure admittance and his designated seat.

138. Notwithstanding the foregoing, Plaintiff fears that defendant MSG likely will continue referring to the NYPD for arrest on criminal trespass charges persons in attendance at ticketed events for which tickets are sold to the general public whenever such person either (a) cannot promptly produce indicia of license on demand; or (b) have had their license revoked by security personnel employed by defendant MSG, or their agents, who purportedly may revoke the license of any person in attendance at a ticketed event in The Garden in their absolute discretion; and based solely upon defendant MSG's false claim that The Garden is a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders.

139. Notwithstanding the foregoing, Plaintiff fears that at events held at The Garden wherein tickets to such events are sold to the general public, defendant MSG will deem The Garden not "open to the public" within the meaning of Penal Law § 140.00 (5) such that persons in attendance at The Garden at ticketed events where tickets have been sold to the general public who are unable to produce a ticket need not be asked to leave The Garden at the request of defendant MSG or its duly authorized employees prior to defendant MSG or its duly authorized employees deeming such person as having entered or remained unlawfully upon defendant MSG's property.

140. Plaintiff seeks a declaration that when The Garden is open for a ticketed event for which defendant MSG or others sell tickets to the general public, that The Garden is "open to the public" within the meaning of Penal Law § 140.00 (5).

141. Plaintiff seeks a declaration that The Garden is not a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders within the meaning of Penal Law § 140.10 (a).

**AS AND FOR A FOURTEENETH CAUSE OF ACTION
(Injunctive Relief - City of New York)**

142. Plaintiff repeats and realleges all matter contained in paragraphs 1-141 of this complaint with the same force and effect as in same were more fully set forth below.

143. Plaintiff asks this Court to enjoin defendant CITY OF NEW YORK, acting by and through its charter agency the NYPD and all of its employees thereof, from arresting and charging with criminal trespass in the third degree any person in attendance at any ticketed event at the Garden wherein tickets have been sold by defendant MSG or others to the general public

upon an allegation that The Garden is a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders.

144. Plaintiff asks this Court to enjoin defendant CITY OF NEW YORK, acting by and through its charter agency the NYPD, and all of its employees thereof, from arresting and charging with simple trespass (Penal Law § 140.05) any person present at any ticketed event at The Garden wherein tickets have been sold by defendant MSG or others to the general public absent an allegation that such person violated a lawful order not to enter or remain, personally communicated to such person by defendant MSG or such other person authorized by defendant MSG.

145. Plaintiff has no adequate remedy at law.

WHEREFORE Plaintiff prays for judgment as follows:

(1) Judgment declaring that The Garden is not a building or upon real property that is fenced or otherwise enclosed in a manner designed to exclude intruders;

(2) Judgment declaring that The Garden is "open to the public" within the meaning of Penal Law § 140.00 (5) whenever a ticketed event is being held at The Garden for which tickets were sold to the general public by defendant MSG or by anyone else.

(3) A permanent injunction against the City of New York prohibiting its charter agency, the NYPD, and all of its employees, agents, and attorneys, from arresting, charging and prosecuting any person for criminal trespass in the third degree based upon an allegation that The Garden is a building or upon real property that is fenced or otherwise enclosed in a manner designed to exclude intruders;

(4) A permanent injunction against the City of New York prohibiting its charter agency, the NYPD, and all of its employees, agents, and attorneys, from prosecuting any person

any person present at any ticketed event at The Garden wherein tickets have been sold by defendant MSG or others to the general public absent an allegation that such person violated a lawful order not to enter or remain, personally communicated to such person by defendant MSG or such other person authorized by defendant MSG.

- (5) Money damages in the amount of \$1,002,500.00;
- (6) Punitive damages in the amount of \$3,000,000.00;
- (7) A reasonable attorneys fee pursuant to 42 U.S.C. § 1988;
- (8) The costs and disbursements of this action;
- (9) Any and such other and further relief that to this Court may seem just and proper under the premises.

DATED: Jamaica, New York
November 8, 2018



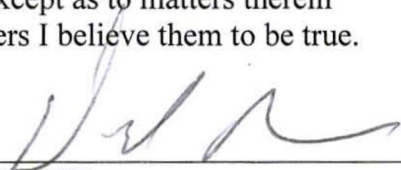
THOMAS J. HILLGARDNER, ESQ.
Attorney for Plaintiff
82-63 170th Street
Jamaica, New York 11432
(718) 657-0606

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

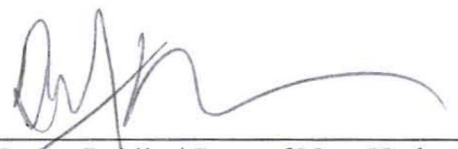
David Roberti, being duly sworn, deposes and says:

That I am the plaintiff herein; I have read the foregoing Complaint and know the contents thereof; that the same is true to my knowledge except as to matters therein alleged upon information and belief, and as to those matters I believe them to be true.



DAVID ROBERTI

SUBSCRIBED AND SWORN to before me on this 8th day of November 2018.



Notary Public / State of New York

THOMAS J HILLGARDNER
NOTARY PUBLIC - NEW YORK STATE
REG #02HI5049670
QUALIFIED IN QUEENS CO.
MY COMMISSION EXPIRES 09/18/ 21

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DAVID ROBERTI,

Plaintiff,

--against--

THE MADISON SQUARE GARDEN COMPANY, a Delaware business corporation, NAOMI STACKPOLE, in her official capacity as an employee of The Madison Square Garden Company, and individually, JOHN DOE 1-7*, in their official capacity as employees of The Madison Square Garden Company, and individually, CITY OF NEW YORK, a New York municipal corporation, JOEL MOTTOLA, in his official capacity as a Member of Service of the Police Department of the City of New York, and individually,

Defendants.

*The names of the defendants being fictitious and unknown to plaintiff, the persons intended being persons employed as ushers and/or security personnel by defendant The Madison Square Garden Company

SUMMONS with VERIFIED COMPLAINT

LAW OFFICE OF THOMAS J. HILLGARDNER

Attorney for Plaintiff

82-63 170th Street

Jamaica, New York 11432

(718) 657-0606

Service of a copy of the

is hereby admitted.

DATED:

Attorney for Petitioner

Certification Pursuant to Part 130-1.1

I hereby certify that the documents contained herein contain no frivolous matter and comply with the requirements of Part 130 and Section 130-1.1 thereof.

DATED: November 12, 2018

Thomas J. Hillgardner, Esq.

LAW OFFICE OF THOMAS J. HILLGARDNER

Attorney for Plaintiff

82-63 170th Street

Jamaica, New York 11432

(718) 657-0606